

24VECV01158 24VECV01158

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 24VECV01158 Hearing Date: September 22, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DAVID COHEN, a Minor,

by and through his Guardian Ad Litem, LISA COHEN,

Plaintiff,

vs.

CLUBCORP BRAEMAR COUNTRY CLUB, INC., a

Corporation, MAILANI SCHERZBERG, SUSAN PENDO, and DOES 1 through 40,

Inclusive,

Defendants.

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CASE NO.: 24VECV01158

ORDER

GRANTING PETITIONER'S PETITION FOR MINOR'S COMPROMISE

I.

BACKGROUND

Plaintiff David Cohen

("Claimant"), a minor

by and through his Guardian Ad Litem Lisa Cohen ("Petitioner"), brings this negligence action against Defendants, Clubcorp Braemar Country Club, Inc., Mailani Scherzberg, and Susan Pendo (collectively "Defendants"). Claimant alleges he was injured at tennis camp when he was struck in the face by the tennis racket by another camper.

Petitioner filed the

instant Petition for Minor's Compromise on behalf of Claimant.

II.

PROCEDURAL

HISTORY

On March 8,
2024, Petitioner filed this action alleging negligence.

On May 22,
2026, Petitioner filed a Notice of Settlement.

On August 19,
2026, Petitioner filed the instant Petition, which is unopposed.

III.

LEGAL STANDARD

An
enforceable settlement of a minor's
or incompetent's claim requires court approval. (See
Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) [1]

Probate
Code § 3600, et seq., governs how the settlement proceeds are to be
paid. Pursuant to Probate Code § 3601, the order shall approve
payment of reasonable expenses from the settlement as follows:¿

The court making the order or giving the judgment
referred to in Section 3600, as a part thereof, shall make a further order
authorizing and directing that such reasonable expenses (medical or otherwise
and including reimbursement to a parent, guardian, or conservator), costs, and
attorney's fees, as the court shall approve and allow therein, shall be paid
from the money or other property to be paid or delivered for the benefit of the
minor or incompetent person.

(See Prob.
Code § 3601(a).)¿

In

cases pursuant to Probate Code § 3601, “unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney’s fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.” (See Rules of Court 7.955(a)(1).) In doing so, “[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.” (See id., rule 7.955(a)(2).)

There

are several nonexclusive factors a Court may consider in determining a reasonable attorney’s fee. (See id., rule 7.955(b).) Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

“In any case

in which the court orders that funds to be received by a minor or a person with a disability must be deposited in a financial institution and not disbursed without further order of the court, the order must include a provision that a certified or filed endorsed copy of the order must be delivered to a manager at the financial institution where the funds are to be deposited, and that a receipt from the financial institution must be promptly filed with the court, acknowledging receipt of both the funds deposited and the order for deposit of funds.” (See id., rule 7.953(a).)

IV.

ANALYSIS

Claimant has

agreed to settle his claims against Defendants in exchange for \$85,000.00. (See Pet., ¶ 10.) Claimant sustained injuries, including “[t]wo broken teeth, one loosened/damaged tooth.” (See id., ¶ 6.) Claimant has recovered completely from his injuries. (See id., ¶ 8(a), Attach. 8.)

No medical expenses incurred are to be paid or reimbursed from the proceeds. (See

id., ¶ 12a(4).)

If

approved, \$21,250.00 will be used for attorney fees and \$3,703.25 for non-medical expenses, leaving a balance of \$60,046.75 to be deposited in an insured account at Morgan Stanley 2725 Sand Hill Road, Suites 100 & 200, 1st Floor Menlo Park, CA 94025, subject to withdrawal only by authorization of the court. (See id., ¶ 16, 18a(2).)

Petitioner's

counsel, David B. Bobrosky, requests attorney fees which comprise 25% of the settlement amount. (See Attachs. 13(a) at ¶ 4, 17(a).) Counsel was able to obtain a favorable settlement for Claimant. (See id.) This case settled a little over two years after it commenced. After reviewing counsel's declaration, the Court finds the 25% fee is proportionate to the value of the services performed. (See Rules of Court, rule 7.955(b).)

The

Petition appears to set forth information bearing upon the reasonableness of the compromise pursuant to Rules of Court, rule 7.950. Given the age of the minor Claimant, the Court will only require attendance at the hearing by the Petitioner to grant the petition if the parties wish to be heard further on the Court's tentative ruling granting the Petition; otherwise, Petitioner's attendance is not necessary. (See Rules of Court, rule 7.952(a).) Thus, the Court GRANTS Petitioner's Petition for Minor's Compromise.

V.

CONCLUSION

Based on the

foregoing, the Court GRANTS Petitioner's Petition for Minor's Compromise. The Court will sign the Order to Deposit Funds into Blocked Account on Form MC-355.

The Court

sets an Order to Show Cause re: Proof of deposit/purchase of annuity for October 20, 2026, at 8:30 a.m. (See Rules of Court, rule 7.953(a).) If an acknowledgement of receipt by the financial institution is filed before that date, no appearance will be required

IT

IS SO ORDERED.

DATED: September 22, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.